

The statute does not expressly address how the 25% plaintiff's share of the penalties is to be allocated among all of the aggrieved employees. (*Iskanian v. CLS Transp. Los Angeles, LLC* (2014) 59 Cal.4th 348, 382.) One court has held, however, that the entire 25% share of penalties could not be awarded to the plaintiff. (*Moorer v. Noble L.A. Events, Inc.* (2019) 32 Cal.App.5th 736, 742-743.) In *Moorer*, the plaintiff had a claim worth about \$9,500, yet was collecting penalties of \$148,000, and keeping the entire employee share, causing the court to be concerned that the plaintiff had lost sight of the fact that the purpose of the action is to benefit the public, not private parties. Allocation based on pay periods is reasonable here.

Costs of **\$14,200.00** are sought. This amount at first seems large but is largely attributable to the cost of private mediation. Given that professional private mediation generally is necessary to resolve these types of matters, the Court finds the expenses are reasonable and are approved. The administrator's costs of **\$4,990.00** are reasonable and are approved.

### **Ruling**

1. The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged on July 21, 2026 attaching a copy of this ruling. If there is a conflict in the proposed order and this ruling, the terms of this ruling shall prevail.
3. Counsel are ordered to obtain a compliance hearing date for from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to joint status report and declaration by the administrator at least nine court days before the compliance hearing date/
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on August 12, 2026.

**6. 9:00 AM CASE NUMBER: C23-01650**  
**CASE NAME: JASON BROERS VS. NAGINA PROPERTY MANAGEMENT LLC**  
**FINAL APPROVAL - SET BY THE COURTROOM**  
**FILED BY:**

**\*TENTATIVE RULING:\***

### **Summary**

Plaintiff Jason Broers, individually and on behalf of the putative class, ("Plaintiff") move for final approval of the class action and PAGA settlement against Defendant Nagina Property Management, LLC ("Defendant"). This motion is **granted** as set forth herein. No appearance is required at the hearing on August 12, 2026.

## **Background**

Defendant is in the business of the hotel industry and operates the Clarion Hotel Concord. Plaintiff was employed by Defendant from approximately November 2022 through January 2023 as a non-exempt, hourly employee. Plaintiff alleged that he was denied legally compliant meal and rest periods, minimum wages and overtime compensation, wage statements, and was not timely paid all wages upon his separation of employment. Throughout his employment, Plaintiff was subject to Defendant's written policies and procedures. Despite its meal and rest period policies, Plaintiff alleges that Defendant systematically prevented Plaintiff from being able to take his meal periods and rest breaks. Generally, Plaintiff alleges Defendant's failure to pay for all hours worked including overtime, furnish accurate itemized wages statements, pay all wages owed at termination, reimburse all necessary business expenses, unfair competition, provide compliant meal periods and rest breaks, and permit employees to inspect and receive records.

The Court finds that the parties have reached a settlement of the above-captioned class action and PAGA matter for a non-reversionary Gross Settlement Amount of \$300,000.00. This amount fully resolves all claims asserted by Plaintiff on behalf of himself and the approximately 166 class members who were employed by Defendant as non-exempt, hourly employees at the Clarion Hotel Concord, as well as the PAGA claims on behalf of aggrieved employees who worked for Defendant in California between February 1, 2021, and May 1, 2024.

The Gross Settlement Amount includes the following allocations: Class Counsel's attorneys' fees in the amount of **\$99,000.00** (representing thirty-three percent of the Gross Settlement Amount); Class Counsel's litigation costs of **\$11,498.40**; Settlement Administration costs of **\$7,000.00** to Simpluris, Inc.; a Class Representative Enhancement Payment of **\$20,000.00** to Plaintiff; and a PAGA Payment of \$7,500.00, of which \$5,625.00 (seventy-five percent) shall be paid to the California Labor and Workforce Development Agency and \$1,875.00 (twenty-five percent) shall be distributed to the aggrieved employees.

After the foregoing deductions, the remaining Net Settlement Amount shall be distributed to participating class members on a *pro rata* basis according to the number of qualifying work weeks each class member worked during the class period. The estimated average individual settlement payment is \$1,192.32, with the highest estimated payment being \$5,684.84.

The settlement was achieved following extensive informal discovery and analysis of time and payroll records, as well as a full-day mediation conducted before Bruce Friedman, Esq. The Settlement Administrator has completed the notice process. No class members objected to the settlement, requested exclusion, or submitted workweek disputes. The absence of objections and opt-outs supports the fairness and adequacy of the settlement.

Any settlement checks that remain uncashed 180 days after issuance shall be distributed to the Controller of the State of California to be held pursuant to the Unclaimed Property Law, California Civil Code §§ 1500 et seq., for the benefit of the class members and PAGA aggrieved employees entitled to those funds.

The Court finds that the settlement was reached through arm's-length negotiations by experienced counsel following sufficient investigation and discovery. The settlement is fair, reasonable, and adequate, and is hereby approved. The Court retains jurisdiction to consider entry of judgment and

enforcement of the settlement terms.

### Analysis

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

### Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees \$99,000 relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Counsel’s declaration indicates that while this case was handled on a contingency basis, his normal rate is \$550 per hour. The total amount billed on an hourly basis from all attorneys who worked on this case is \$130,551.00. This results in an imputed negative multiplier of .758, which means that Counsel’s proposed fee award is discounted by approximately 24.2% of the amount billed. The Court finds that the requested attorneys’ fees are reasonable in light of the contingency nature of the representation, the time and effort expended by Class Counsel, the skill required, the results obtained, and the substantial value delivered to the class members, aggrieved employees, and the State of California.

Litigation costs of \$11,498.40 are reasonable and are approved. Settlement administration costs of \$7,000 are reasonable and are approved. The requested representative payment of \$20,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that he assisted attorneys throughout the case, providing attorneys with documents and information concerning the case, and also describing policies, practices, and procedures of Defendant.

**Ruling**

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Plaintiffs' counsel is directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
5. No appearance is required at the hearing on August 12, 2026.

**7. 9:00 AM CASE NUMBER: C23-02401**

**CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.**

**PRELIMINARY APPROVAL (SET BY THE COURTROOM)**

**FILED BY:**

**\*TENTATIVE RULING:\***

**Summary**

The Court **continues** the hearing on this Motion for Preliminary Approval to September 16, 2026 at 9:00 a.m. to allow for hearing on the Demurrer to the cross-complaint currently on calendar for August 26, 2026. No appearance is required at the August 12, 2026 hearing.

**8. 9:00 AM CASE NUMBER: C23-02424**

**CASE NAME: DANIEL HOCOG VS. SERVICE MANAGEMENT SYSTEMS, INC.**

**FINAL APPROVAL OF THE SETTLEMENT**

**FILED BY:**

**\*TENTATIVE RULING:\***

**Summary**

Plaintiffs Daniel Thomas Atalig Hocog and Alfred Estrada Santos Jr. ("Plaintiffs") file this Motion for Final Approval of Class Action and PAGA Settlement against Defendant Service Management Systems, Inc ("Defendant"). The motion is **granted** as set forth herein. No appearance is required in person on August 12, 2026.

**Background**

Defendant is a business that provides housekeeping, maintenance, and consultant programs to